

Ram Nagina Tiwari v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · WRIT - C No. - 32880 of 2021 · **Writ disposed; 6.8 objection directed with stay of recovery.**

HEADNOTE

Without examining the merits of recovery notices issued by the distribution licensee and the Tehsildar, the High Court disposed of the writ by relegating the consumer to the statutory objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directing a time-bound hearing and staying coercive recovery pending that disposal.

FACTUAL SUMMARY

Ram Nagina Tiwari challenged a recovery notice dated 26 October 2020 issued by the Executive Engineer, Electricity Distribution Division-I, U.P. Power Corporation Ltd., Chandauli, and a subsequent Tehsildar notice dated 21 January 2021 seeking to recover the same electricity demand. Counsel for the Power Distribution Corporation (respondent no. 4) stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

statutory objection to recovery / assessment

HOLDING

A consumer challenging recovery of an electricity demand may be relegated to the statutory objection under Para 6.8 of the U.P. Electricity Supply Code, 2005. If the objection is filed within the time allowed, the licensee must decide it in accordance with law after a reasonable opportunity of hearing, and coercive recovery may be stayed pending that disposal, without the Court expressing any opinion on merits. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay

The Court directed the petitioner to file a Para 6.8 objection within four weeks and required respondent no. 4 to decide it after hearing, preferably within the next four weeks, staying coercive action for eight weeks or until disposal, whichever is earlier. ¶ 1

alternative-remedy-statutory-appeal-6.8

The writ was disposed without a merits ruling, relegating the consumer to the Supply Code Para 6.8 objection as the statutory forum for the impugned demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY NOTICES DATED 26.10.2020 AND 21.01.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1